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california - Gun laws pass in year after shootings - Legislation aims to keep firearms away from dangerous people to get firearms

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More than 20 new gun safety laws were passed by California state legislators last year following mass shootings in Monterey Park, Half Moon Bay and elsewhere.

Those laws are designed to make it more difficult for potentially dangerous people to keep firearms, help trace perpetrators when one is used improperly and tax ammunition to fund school safety and gun violence intervention programs.

Advocates, including Gov. Gavin Newsom, say California is leading the nation on such reforms and its success is evidence that “gun safety laws work.”

“The data proves they save lives: California’s gun death rate is 43% lower than the rest of the

nation,” Newsom said in September. “These new laws will make our communities and families safer.”

Tanya Schardt, senior counsel at Brady, a nonprofit advocating for gun safety, said the lower rate of gun-related deaths in California is the “result of deliberate, strategic interventions to set up a system of laws that work.”

“California did a lot last year with a really diverse package of bills,” Schardt said. “It’s a big step forward.”

Those bills include:

• Assembly Bill 28, from Assemblymember Jesse Gabriel, D-Woodland Hills, imposed a tax on the sale of bullets, which is expected to raise $160 million annually for gun violence intervention programs.

• AB 732, from Assemblymember Mike Fong, D-Monterey Park, increased the standards for surrendering firearms following criminal convictions and requires the Department of Justice and local agencies to address a backlog of individuals who may not have turned over their firearms.

• Senate Bill 452, from Sen. Catherine Blakespear, D-Encinitas, prohibits the sale of semiautomatic pistols without microstamping technology, which imprints a code on casings fired from the weapon, after Dec. 31, 2027.

• SB 2, from Sen. Anthony Portantino, D-Pasadena, sets a minimum age of 21 for a concealed carry weapon license and restricts license holders from carrying those weapons in certain sensitive locations.

• SB 241, from Sen. Dave Min, D-Irvine, requires gun dealers and their employees to complete annual training and certification related to the prevention of theft, fraud and illegal purchases.

In 2023, there were 42 mass shootings in the United States in which four or more people were killed, including four in California, according to a database compiled by USA Today, The Associated Press and Northeastern University. In California alone last year, 28 people were killed and 10 injured in mass shootings.

The deadliest of those shootings occurred on Jan. 21, 2023, during Monterey Park’s Lunar New Year celebration. A gunman wielding a semiautomatic handgun entered the Star Ballroom Dance Studio and opened fire on the crowd, killing 11 and injuring nine using a semiautomatic handgun. Two days later, a farm worker killed seven and

wounded one at two mushroom farms in Half Moon Bay.

If SB 452 had been in place, the microstamping on the handgun used in Monterey Park would have allowed law enforcement to immediately identify the shooter, Schardt said.

Other bills, such as AB 28 and AB 1587, aim to prevent gun violence by developing programs to address the root causes and to flag suspicious behavior before a firearm is used, she said.

Last year, American Express, Mastercard and Visa faced pushback over plans to introduce a merchant code to track firearm purchases and flag suspicious behavior. While other states quickly passed laws to prevent the implementation of such a code due to privacy concerns, California took the opposite approach and made it mandatory for banks and credit cards starting Jan. 1.

“Financial institutions can now be a part of our efforts since they are in a unique position to flag buying patterns that no one else can,” stated Assemblymember Phil Ting, D-San Francisco, following the signing of his bill, AB 1587. “Merchant codes are already assigned to other retailers, and the gun industry should be included. Identifying large purchases of firearms and ammunition can be instrumental in helping California prevent tragedies and to save lives.”

Similar codes are used by law enforcement to identify potential human trafficking or fraud, according to Schardt.

Portantino, the state senator from Pasadena, said California’s policies are about “preventing the next tragedy.”

“The data is clear, California is safer than Mississippi or Texas, because of our policy,” Portantino said. “These are public safety initiatives and we know they work.”

SB 2, the CCW law authored by Portantino, immediately faced legal challenges from gun rights advocates. A judge issued a preliminary injunction against the law, which was set to go into effect at the start of the year, after declaring parts of it unconstitutional in December.

The injunction was stayed in early January and then reinstated days later. Litigation against the legislation is still pending, but Portantino said roughly 80% of the law is in effect now, including requirements for 16 hours of training and limitations on carrying firearms in certain locations, such as airports, government buildings and schools.

“It’s an issue that is going to continue to be contested,” Portantino said. “The attorney general is vigorously defending the integrity of SB 2.”

Portantino said he intends to continue to push for additional reforms in 2024. Another bill, SB 53, is working its way through the Legislature already. It would require firearms in homes to be stored in a Department of Justice-approved lock box or safe. Multiple violations could lead to a one-year ban on the purchase and possession of a firearm.

More than 76% of school shooters obtain guns from their homes, he said.

“If you’re going to be trusted with a weapon that kills people, you should be responsible,” he said. “And if you’re irresponsible, you should be held accountable.”

Fong, the assemblymember from Monterey Park, brought forward two other gun safety bills last year. AB 733, which would have prohibited law enforcement agencies from selling firearms, faced opposition from police unions and ultimately was vetoed by Newsom. The other, AB 1638, which was signed into law, requires local agencies providing emergency response services to provide information in English and all languages spoken by 5% or more of the population.

The latter was brought forward in response to the shooting in Monterey Park last January, Fong said. Monterey Park

has one of the largest percentages of Asian residents in Los Angeles County and many seniors in the community, who do not speak English, were unable to get quick and accurate information in the aftermath of the tragedy.

“They didn’t know if the shooter was still a threat,” Fong said.

Fong said he plans to continue to work with the Legislature’s Gun Violence Working Group to push forward more reforms in the future.

“In 2023, California made tremendous progress, but we always know there is more work to be done,” Fong said.

The shooting in Monterey Park led to movement at the federal level as well.

President Joe Biden, during a visit to Monterey Park, unveiled an executive order instructing the U.S. attorney general to ensure that gun dealers are conducting required background checks and to stop gun dealers from selling weapons if they have lost their federal licenses.

In September, Biden created the White House Office of Gun Violence Prevention, led by Vice President Kamala Harris, to coordinate nationwide efforts to prevent gun violence. At the time, Biden renewed a call to Congress to ban assault weapons and high-capacity magazines, to adopt a safe storage law and to implement universal background checks.

“I’m not going to be quiet until we get it done,” Biden said at the time.

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